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NATURE OF PROCEEDINGS

Hearing on Defendants Jack Gerlach, Santa Fe Ranch, LLC, Sage Mountain Ranch LLC, and Lightsource Entertainment, LLC's Motion for Summary Judgment or, in the Alternative, Summary Adjudication.

The Motion for Summary Judgment is granted as to Defendant Santa Fe Ranch, LLC and denied as to Defendants Jack Gerlach, Sage Mountain Ranch LLC, and Lightsource Entertainment, LLC. The alternative Motion for Summary Adjudication is granted as to Issue One in favor of Jack Gerlach and Lightsource Entertainment, LLC, and is otherwise denied.

BACKGROUND

Plaintiff John Rutger Penick (Plaintiff) filed this action arising from an August 5, 2023 collision between Plaintiff's motorcycle and a forklift at the intersection of Laurel Canyon Boulevard and Willow Glen Road in Los Angeles. The defendants are Daniel Molinar, So Cal Equipment Repair, Inc. (So Cal Equipment Repair), Sage Mountain Ranch LLC (Sage Mountain), Santa Fe Ranch, LLC (Santa Fe), Traffic Management, Inc. (Traffic Management), Jack Gerlach (Doe 1), Martin Construction, Inc. (Lightsource), and So Cal Equipment Transport, Inc. (So Cal).

The causes of action in the operative First Amended Complaint are (1) Motor Vehicle Negligence and (2) General Negligence.

Gerlach, Santa Fe, Sage Mountain, and Lightsource (collectively, "Moving Defendants") filed a Motion for Summary

Judgment or, in the Alternative, Summary Adjudication. Plaintiff filed an Opposition.

LEGAL STANDARD

A motion for summary judgment must be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).) The purpose of the procedure is to provide courts "with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843 (Aguilar).) The Court considers all of the evidence and all reasonable inferences drawn from it, and views both in the light most favorable to the party opposing the motion. (Ibid.; Code Civ. Proc., § 437c, subd. (c).)

The moving party bears the burden of persuasion throughout, and "[t]here is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (Aguilar, supra, 25 Cal.4th at p. 850.) A moving defendant bears an initial burden of production to make a prima facie showing that one or more elements of a cause of action cannot be established or that a complete defense exists. Only if it carries that burden does the burden shift to the plaintiff to make a prima facie showing of a triable issue. (Id. at pp. 850 through 851; Code Civ. Proc., § 437c, subd. (p)(2).) A defendant may carry the initial burden by presenting evidence that conclusively negates an element, or by presenting evidence that the plaintiff both does not possess and cannot reasonably obtain the evidence needed to establish one. (Aguilar, supra, 25 Cal.4th at p. 854.) The showing must be made with evidence rather than argument, and may rest on affidavits, declarations, admissions, answers to interrogatories, depositions, and matters judicially noticed. (Id. at p. 855.)

A party may move for summary adjudication of one or more causes of action, and the motion may be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (Code Civ. Proc., § 437c, subd. (f)(1).)

REQUEST FOR JUDICIAL NOTICE

Moving Defendants request judicial notice of the First Amended Complaint and of the Traffic Collision Report. The request is granted as to the First Amended Complaint. (Evid. Code, § 452, subd. (d).)

The request is denied as to the Traffic Collision Report. Judicial notice of a document establishes its existence and facial contents, not the truth of the matters recited in it (Yvanova v. New Century Mortgage Corp. (2016) 62 Cal.4th 919, 924, fn. 1), and it reaches only facts not reasonably subject to dispute (Evid. Code, § 452, subd. (h)). Moving Defendants offer the report to prove the truth of the investigating officer's determinations, which are disputed.

Plaintiff requests judicial notice of Los Angeles Municipal Code sections 91.110, 62.45, 62.61, and 56.12. The request is granted. (Evid. Code, § 452, subd. (b).)

EVIDENTIARY OBJECTIONS

The Court rules only on those objections it deems material to the disposition of the Motion. (Code Civ. Proc., § 437c, subd. (q).)

Plaintiff objects to Exhibit 1 to Moving Defendants' compendium, the Traffic Collision Report, on grounds of hearsay, lack of foundation, lack of authentication, and improper expert opinion. The objection is sustained on the hearsay and opinion grounds.

Moving Defendants offer the report to prove the truth of its statements, namely that the investigating officer determined that Molinar caused the collision through an unsafe left turn and identified Plaintiff's speed as an associated factor. The report is an out-of-court writing offered for that purpose, and Moving Defendants advance no exception. (Evid. Code, § 1200.) The designation of a primary collision factor and an associated factor is, in addition, the opinion of a person who did not witness the collision, offered without the showing of qualification or basis required by Evidence Code section 801. Traffic accident reports are also not admissible in evidence. (Veh. Code, § 20013; Box v.

California Date Growers Assn. (1976) 57 Cal.App.3d 266, 270 through 271.) The only authentication offered is counsel's statement that the exhibit is a true and correct copy of the report, which establishes what the document is but supplies no foundation for the officer's observations or conclusions. (Danishwar Decl., ¶ 3.)

Moving Defendants object to ten items of Plaintiff's evidence: Exhibits C and D, So Cal's responses to requests for admission and to form interrogatories; Exhibits H, I, and J, Gerlach's Owner-Builder Declarations; Exhibits K, L, M, and N, the Municipal Code sections; and Exhibit P, a diagram of the collision area prepared by Gerlach. Each is met with the same seven grounds, asserted without tailoring to the material objected to. The objections are overruled. Exhibits C and D are a party's verified discovery responses. Exhibits H, I, and J are documents Gerlach signed and initialed, and Moving Defendants concede as undisputed both that he executed them and what paragraphs 10 and 11 of each provide. Exhibits K through N are the ordinances judicially noticed above. Exhibit P is a diagram Gerlach prepared, and Moving Defendants concede as undisputed the fact drawn from it.

ANALYSIS

I. Scope of the Pleadings

Moving Defendants contend at the threshold that the Opposition rests on theories absent from the First Amended Complaint, namely Gerlach's status as an owner-builder, negligence per se premised on the Los Angeles Municipal Code, the peculiar-risk and retained-control doctrines, and alter ego. The pleadings measure the materiality of the facts tendered and set the boundaries of the issues to be resolved at summary judgment, and a plaintiff may not manufacture a triable issue by advancing unpleaded theories in opposition. (Laabs v. City of Victorville (2008) 163 Cal.App.4th 1242, 1253 (Laabs).) A moving defendant accordingly need only negate the theories alleged in the operative pleading. (Hutton v. Fidelity National Title Co. (2013) 213 Cal.App.4th 486, 493 (Hutton).)

The General Negligence cause of action is broader than Moving Defendants read it. It alleges that each defendant owed Plaintiff a duty of due care "in relation to the work, job, planning, management, execution, and/o[r] service that defendant performed, conducted, and/or was responsible for on the date of the incident"; that each defendant breached that duty by acting or failing to act with due care in relation to that same work; and that each defendant "was negligent per se due to the violation of statute, regulation, or ordinance, the violation of which was a substantial factor in bringing about the harm to plaintiff." (FAC at p. 5.) A claim that Gerlach's own planning and arrangement of the forklift delivery fell below the standard of care falls within that pleading.

Nor was Plaintiff required to identify the enactments on which he relies. Under our system of pleading it is "unnecessary to plead or refer to a statute relied upon as creating a duty, where the action is one predicated upon the negligence of the defendant and not one to enforce a liability or penalty imposed by statute." (Jackson v. Hardy (1945) 70 Cal.App.2d 6, 12.) The existence and violation of an enactment "are given in evidence in aid of the general negligence alleged; it is simply evidentiary matter." (Id. at p. 13.) And where general allegations of negligence are followed by an enumeration of specific facts, a plaintiff is not limited to the specific acts unless the pleading clearly shows an intention to so limit it. (Ibid.) That principle answers the objection to the owner-builder and Municipal Code contentions, which are evidence and argument offered in support of theories the FAC states rather than substitutes for them.

Laabs is distinguishable. The plaintiff there premised dangerous-condition liability on a physical feature of the property that her complaint never identified as a basis for liability, and the new theory shifted the claim to "a portion of public property not remotely referenced in the amended complaint." (Laabs, supra, 163 Cal.App.4th at p. 1258.) Nothing comparable occurs here. The conduct Plaintiff attacks is the same conduct the FAC alleges.

The Motor Vehicle Negligence cause of action is likewise not confined to direct operation, but it is confined to what it pleads. At MV-2, subdivisions (a) through (e), the pleading names the defendants as parties who operated the vehicle involved, employed its operator, owned it and permitted its operation, entrusted it, and acted as agents for one another, and the Doe box is checked at each subdivision, so the count reaches Gerlach and Lightsource as Doe 1 and Doe 3. (FAC at p. 4.) Subdivision (f), where a pleader states any other reason a defendant is liable, is blank. Those five theories are the measure of Moving Defendants' burden on the first cause of action, and no other basis of liability is available on that count.

Alter ego stands differently. The First Amended Complaint contains no allegation of unity of interest, no allegation of undercapitalization or abuse of the corporate form, no allegation that recognizing the entities as separate would produce an inequitable result, and nothing beyond the form pleading's checkbox allegation that the Doe defendants were the agents or employees of the named defendants. Plaintiff advanced the theory for the first time in the Opposition and did not seek leave to amend at or before the hearing. It is not properly before the Court. (Laabs, supra, 163 Cal.App.4th at p. 1253.) The further reasons the theory would fail on this record are addressed below.

Accordingly, except for alter ego, the theories Plaintiff advances in his Opposition are within the operative pleading at least as to the general negligence cause of action.

II. Moving Defendants' Evidence

The evidence Moving Defendants submit supports the following facts. So Cal employed Molinar. (Gerlach Decl., ¶ 4.) Gerlach hired So Cal to move the forklift and supplied Molinar with the drop-off address. (Id., ¶¶ 3, 6.) Gerlach did not tell Molinar how to conduct the transfer, how or where to load the forklift, what route to take, or what lanes to use. (Id., ¶¶ 7 through 11.) Molinar testified that he used his employer's truck and chose the route, the road and freeway, the lane, and the exit, and that he was familiar with the destination street and with Laurel Canyon Boulevard before the incident. (Defs.' Compendium, Exh. 4, Molinar Depo. 206:9-207:21.) Santa Fe did not own the forklift, arrange the transport, own the destination property, own the transport vehicle, or employ Molinar. (Defs.' Compendium, Exh. 3, Santa Fe Resps. to Form and Special Interrogs.)

That evidence establishes that Molinar was not the agent of any Moving Defendant. An agency arises from the manifestation of consent by one person to another that the other shall act on the person's behalf and subject to the person's control, together with the other's consent so to act, and among the factors bearing on the question the right of control is pivotal. (Secci v. United Independent

Taxi Drivers, Inc. (2017) 8 Cal.App.5th 846, 855.) So Cal employed Molinar and owned the vehicle he operated, and no Moving Defendant directed his route, lanes, loading, or method. Ostensible agency fails for the further reason that Plaintiff dealt with no one and relied on no manifestation of authority. (Civ. Code, §§ 2298, 2300.) Plaintiff does not contend otherwise. The Opposition rests the entities' liability on Gerlach's conduct rather than on Molinar's.

The evidence also establishes that no Moving Defendant operated either vehicle and that none of them employed Molinar. So Cal owned the tractor-trailer, and Molinar operated both the tractor-trailer and the forklift. (Defs.' Compendium, Exh. 2, Molinar Resps. to Form Interrogs.; Gerlach Decl., ¶ 4.) Plaintiff disputes none of it. That no Moving Defendant owned the tractor-trailer is undisputed as well, and immaterial. The tractor-trailer was parked in the center two-way turn lane and was not involved in the collision. The vehicle that struck Plaintiff was the forklift, which Sage Mountain owned. (Defs.' Compendium, Exh. 5, Sage Mountain Resps. to Form and Special Interrogs.) Liability arising from that ownership is addressed below.

The evidence further makes a prima facie showing that Moving Defendants delegated the transport to a competent independent contractor and are not answerable for the manner in which that contractor performed it. What it does not show is that Gerlach's own arrangements for the delivery were reasonable. The Gerlach declaration is silent on why the forklift was sent to a property the delivery truck could not reach, on whether Gerlach knew it could not reach that property, and on what he told the driver about the conditions awaiting him there.

III. Peculiar Risk and the Privette Doctrine

Both sides invoke the line of authority beginning with Privette v. Superior Court (1993) 5 Cal.4th 689 (Privette). Plaintiff treats peculiar risk and retained control as exceptions to Privette that he must fit within. Moving Defendants argue in Reply that Privette bars the claim outright and that no exception applies. The order is the reverse of what both sides assume, and the error matters, because it directs attention to what Gerlach did when the threshold question is who Plaintiff is.

A.

Peculiar Risk Is the Governing Doctrine. A person who hires an independent contractor is ordinarily not answerable for the contractor's negligence in performing the work. (Tverberg v. Fillner Construction, Inc. (2010) 49 Cal.4th 518, 524 (Tverberg).) Peculiar risk is the exception, and it is the doctrine that governs a third party's claim against a hirer. Under it, "a person who hires an independent contractor to do inherently dangerous work can be held liable for tort damages when the contractor causes injury to others by negligently performing the work." (Toland v. Sunland Housing Group, Inc. (1998) 18 Cal.4th 253, 256 (Toland).)

Its purpose identifies the persons it protects. Courts fashioned the doctrine so that a landowner "who chose to undertake inherently dangerous activity on his land should not escape liability for injuries to others simply by hiring an independent contractor to do the work," and so that "innocent third parties injured by the negligence of an independent contractor hired by a landowner to do inherently dangerous work" would have a source of recovery. (Tverberg, supra, 49 Cal.4th at pp. 524 through 525.) It "serves to ensure that innocent bystanders or neighboring landowners injured by the hired contractor's negligence will have a source of compensation even if the contractor turns out to be insolvent." (Toland, supra, 18 Cal.4th at p. 256.)

The doctrine takes two forms. A hirer who fails to provide, in the contract or otherwise, that special precautions be taken may be liable if the contractor's negligent performance causes injury, and a hirer who did provide for them may be liable if the contractor fails to take them. (Id. at pp. 256 through 257.) The first is sometimes described as direct liability, but our Supreme Court has held the distinction immaterial, because liability in either form "is in essence 'vicarious' or 'derivative' in the sense that it derives from the 'act or omission' of the [independent] contractor, because it is the [independent] contractor who has caused the injury by failing to use reasonable care in performing the work." (Tverberg, supra, 49 Cal.4th at pp. 525 through 526.)

Plaintiff is a motorcyclist who was struck on a public street and had no connection to the transport. He is the innocent bystander the doctrine was built to compensate. Peculiar risk is accordingly a theory of liability available to him, not a hurdle he must clear, and the question is whether anything removes him from it.

B. Privette

Privette holds that the hirer’s liability under the peculiar-risk doctrine does not extend to those who perform the hired work. As first announced, the carve-out covered the contractor’s employees, whose injuries were already covered by workers’ compensation. (Toland, supra, 18 Cal.4th at p. 256.) It has since been enlarged. It bars recovery by an independent contractor injured personally, who is entitled to no workers’ compensation at all, and the Court rejected the view “that the presence or absence of workers’ compensation coverage is the key to resolving this case.” (Tverberg, supra, 49 Cal.4th at pp. 521 through 522.) The rationale was relocated accordingly: “Over time, we’ve recast our primary rationale for the Privette doctrine in terms of delegation rather than workers’ compensation.” (Sandoval v. Qualcomm Inc. (2021) 12 Cal.5th 256, 270 (Sandoval).) The class the carve-out now covers is the “contract worker,” meaning “the independent contractor personally, the independent contractor’s employees, the independent contractor’s subcontractors personally, the subcontractors’ employees, and so on.” (Id. at p. 270, fn. 2.)

Despite its enlargement beyond its workers’ compensation origins, Privette still reaches only those who stand in the chain of delegation and no one else. “As between an unrelated third party and a hirer, courts have preferred to let the loss lie with the party for whose benefit the contracted work was undertaken.” (Id. at p. 269.) It is only “where the injury falls on a ‘contract worker’“ that “concerns about the distribution of tort burdens as between the hirer and contractor have become paramount.” (Id. at p. 270.)

Plaintiff occupies none of those positions. He is not the contractor, not its employee, not a subcontractor, and not a worker of any description. He is the unrelated third party the passage above describes, and he is the person peculiar risk exists to protect. Privette does not reach him.

C.
Application

Peculiar risk remains potentially available to Plaintiff. Whether it succeeds turns on two questions. The first is whether the transport and roadway operation of a heavy forklift was work carrying a risk peculiar to it, requiring special precautions. The second is whether the injury nonetheless resulted from collateral negligence, because "[e]ven when the work presents a special or peculiar risk of harm, the person who hired the contractor will not be liable for injury to others if the injury results from the contractor's 'collateral' or 'casual' negligence." (Toland, supra, 18 Cal.4th at pp. 258 through 259.) The Court does not resolve either question. Summary adjudication is available only as to a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (Code Civ. Proc., § 437c, subd. (f)(1).) Because the direct negligence theory addressed in the following section survives, a ruling on the availability of peculiar risk would dispose of neither cause of action, and the questions are properly resolved when instructions are settled.

Peculiar risk is not, however, available on the first cause of action. That count pleads five bases of liability and no others, and peculiar-risk liability is none of them. It is a hirer's liability for the negligence of an independent contractor, which is neither operation of the vehicle, nor employment of its operator, nor ownership coupled with permission, nor entrustment, nor agency. Subdivision (f) of MV-2 is where the form provides for a theory of that kind, and a moving defendant need only negate the theories the operative pleading alleges. (Hutton, supra, 213 Cal.App.4th at p. 493.) The doctrine remains available on the second cause of action, which alleges a duty of due care in relation to the work each defendant performed, conducted, or was responsible for. (FAC at p. 5.)

Finally, none of these doctrines bears on that direct theory. Peculiar-risk liability, in either of its forms, derives from the contractor's act or omission. Plaintiff's principal contention does not. It rests on Gerlach's own decisions about where the equipment would go, and a hirer's delegation of the work says nothing about the hirer's own want of ordinary care. (Civ. Code, § 1714, subd. (a).)

IV. The General Negligence Cause of Action

A.

Duty. Everyone is responsible for an injury occasioned to another by want of ordinary care in the management of his or her property or person. (Civ. Code, § 1714, subd. (a).) In other words, "each person has a duty to use ordinary care and ‘is liable for injuries caused by his failure to exercise reasonable care in the circumstances. . . .’” (Cabral v. Ralphs Grocery Co. (2011) 51 Cal.4th 764, 771 (Cabral).) Duty is a question of law. (Id. at p. 770.) Absent a statute creating an exception, courts recognize one only where public policy clearly supports it, and the analysis proceeds at a broad level of factual generality: the task is not to decide whether this plaintiff’s injury was reasonably foreseeable in light of this defendant’s conduct, but to evaluate whether the category of negligent conduct at issue is sufficiently likely to result in the kind of harm experienced that liability may appropriately be imposed. (Id. at pp. 771 through 774.)

Moving Defendants’ answer to the duty element is that they hired a qualified transportation company, relied on its expertise, and confirmed with its driver that he knew the destination and could complete the task. For the reasons stated above, that answers a claim Plaintiff’s principal theory does not make. Delegation of the work to a competent contractor allocates responsibility for the contractor’s conduct. It does not relieve the hirer of the duty imposed by Civil Code section 1714 to use ordinary care in his own activities, and arranging a delivery is an activity of the person who arranges it. The question is not whether Gerlach is answerable for how Molinar executed a left turn. It is whether Gerlach exercised ordinary care in deciding where the equipment would go.

Gerlach alone decided the forklift had to leave the Malibu property, which Sage Mountain had sold, and he alone decided it would go to 2598 Thames Place. (Pl.’s Compendium, Exh. A, Gerlach Depo. 19:25-20:10, 25:13-23, 91:10-92:23.) Sage Mountain owned other property where the forklift could have been stored, and Gerlach selected Thames Place instead because doing so was cheaper. (Id. at 93:20-95:2.) He knew when he booked the transport that So Cal’s truck could not reach Thames Place and could not fit down Willow Glen Road, and he told So Cal so. (Defs.’ Resp. to Additional Material Facts No. 25; Pl.’s Compendium, Exh. C, So Cal Resps. to Reqs. for Admis., Set One, No. 2.) Molinar confirmed it, answering, when asked whether Gerlach had informed him the truck would not fit down Willow Glen Road, “I know that; he knew that.” (Pl.’s Compendium, Exh. B, Molinar Depo. 165:22-24.) Gerlach had been to the area many times and was familiar with the layout of Willow Glen Road and Laurel Canyon Boulevard. (Pl.’s Compendium, Exh. A, Gerlach Depo. 22:10-23:11.), Molinar testified that Gerlach told him at pickup that the destination was not an active jobsite, that “that’s why you had to leave it,” that “you had to park it on the road,” and that he therefore knew when he picked up the equipment that there would be no employees, workers, or flaggers at the jobsite. (Defs.' Compendium, Exh. 4, Molinar Depo. 213:5-14.)

Accordingly, the category of conduct is not the hiring of a transport company. It is directing heavy equipment to a destination the delivering truck cannot reach, on a street the sender knows, with the consequence that the equipment must be discharged onto the public roadway and driven the remaining distance in traffic. The parties dispute whether Gerlach or the carrier selected the particular corner. Even assuming the carrier selected the particular corner, once the destination is a place the truck cannot reach, the roadway discharge follows as a matter of course, and which corner it occurs on is a detail of execution.

At that level of generality, injury to a motorist using the roadway is not categorically unforeseeable. Moving Defendants frame the category as the hiring of an experienced transportation company and argue that no special relationship with Plaintiff supports a duty and that a collision caused by the hired driver's unsafe left turn was unforeseeable. That framing omits the feature of the arrangement that puts the case within the general rule. The distinction between misfeasance and nonfeasance that Moving Defendants invoke fails for the same reason. The evidence describes affirmative conduct creating a hazard, not a failure to intervene against a risk created by someone else.

Moving Defendants seek no categorical exception to the general rule and identify no policy that would support one. Nor would the Rowland considerations support one here. The burden of the alternative was slight, because another property was available and the roadway route was chosen to save money, and the policy of preventing future harm is ordinarily served by placing the cost of a roadway hazard on the party who chose to create it.

Accordingly, Moving Defendants have not established the absence of a duty as a matter of law.

B.
Breach.

The evidence recited above would permit a reasonable trier of fact to find that Gerlach failed to use ordinary care. He sent heavy equipment to a property he knew was unreachable by the delivering truck, in an area whose layout he knew, when a property that could receive it was available and was passed over on grounds of cost. He then told the driver that the site would be unstaffed and that the machine would have to go on the road. Whether a reasonable person in his position would have chosen differently is the sort of question that ordinarily belongs to the jury.

Plaintiff also relies on the absence of a street-occupation permit, on Gerlach's instruction that the keys be left attached to the steering wheel, and on the absence of anyone at the drop-off to receive the equipment. (Pl.'s Compendium, Exh. A, Gerlach Depo. 28:22-29:16, 65:22-66:21, 112:14-17.) That evidence bears on breach, and Plaintiff may present it, but the triable issue identified above does not depend on it.

Plaintiff's owner-builder and negligence per se contentions bear on the standard of care in the same way, and he may present that evidence as well. The Court does not reach whether the presumption under Evidence Code section 669 is available to him because a duty of ordinary care exists here independently under Civil Code section 1714, and a ruling on the presumption would dispose of no cause of action. (Code Civ. Proc., § 437c, subd. (f)(1).)

Moving Defendants have contrary evidence on breach. Molinar testified that a flagger is "not required by State" and "not a law," and that he performs such deliveries daily without one. (Pl.'s Compendium, Exh. B, Molinar Depo. 161:4-8.) He testified that customers do not typically accompany him and do not typically provide personnel to assist with delivery. (Defs.' Compendium, Exh. 4, Molinar Depo. 208:1-15.) He knew the area was tight from his own familiarity with it rather than from anything Gerlach told him, and he never told Gerlach he would have any problem making the delivery. (Id. at 208:17-25.) A reasonable trier of fact could find that Gerlach's arrangements fell below the standard of care, or could find that they conformed to ordinary practice and that the professional he engaged raised no concern. That choice belongs to the jury.

C.
Causation.

Moving Defendants argue that Molinar's unsafe left turn was the sole proximate cause. The determination that Molinar's turn was the sole cause rests on the Traffic Collision Report, to which the objection has been sustained, so that determination is unsupported. What remains is that Molinar attempted a left turn across Plaintiff's lane and struck him, which establishes his conduct as a cause but not as the only one.

Moving Defendants further argue that selecting a destination did not cause Molinar to turn unsafely. The argument misstates the counterfactual. The question is not what Molinar would have done differently, but what would have happened had the forklift not been directed to a property the truck could not reach. On this record, a trier of fact could find that the machine would have been unloaded on private ground, or in another county, and would not have been crossing Laurel Canyon Boulevard at 8:35 that morning at all.

That another person's negligence intervened does not sever the connection. The comparison of two negligent acts is "to be done by the jury in apportioning fault, not by the court as a matter of law." (Lugtu v. California Highway Patrol (2001) 26 Cal.4th 703, 726.) Where a defendant's conduct places a vehicle in a position of danger relative to moving traffic, the risk of harm from the negligence of an oncoming driver "is one of the foremost risks against which" the duty of care is directed. (Id. at pp. 725 through 726.) The negligent operation of a forklift on a busy roadway is the risk that makes discharging one onto that roadway hazardous.

Accordingly, Moving Defendants have not established the absence of a triable issue on breach or causation.

D.

Application to Each Moving Defendant

This cause of action reaches Gerlach through his own conduct in arranging the delivery, and it reaches the entity defendants only if Gerlach acted in the transaction of their business. (Civ. Code, § 2338.) Whether it also reaches a hirer under the peculiar-risk doctrine is a question the Court has not resolved, and that question too would depend on whose business the transport served.

Jack

Gerlach. Gerlach is the only Moving Defendant whose own conduct is at issue, and the analysis as to him is direct rather than derivative. For the reasons stated above, triable issues remain as to whether he exercised ordinary care in directing the equipment to a destination he knew the delivery truck could not reach, and whether that decision was a substantial factor in bringing about the collision. This cause of action survives as to Gerlach, and Issue Two is not adjudicable in his favor.

Sage

Mountain Ranch LLC. Sage Mountain took no action of its own and answers, if at all, on a derivative ground. A principal is responsible to third persons for the negligence of its agent in the transaction of the business of the agency, including wrongful acts committed as part of that transaction. (Civ. Code, § 2338.) A limited liability company acts through natural persons. Gerlach testified that none of the entities had any officer, manager, member, or director other than himself from 2019 to the present (Pl.'s Compendium, Exh. A, Gerlach Depo. 107:9-21). Moving Defendants concede that he was the only person who acted on behalf of any of them in connection with the forklift, the transport, the destination, and the drop-off location. Their own evidence admits that he is an employee and a part-owner of each. (Gerlach Decl., ¶ 1.) The forklift was Sage Mountain's property, purchased through Sage Mountain to carry building materials for Gerlach's construction work, and it had to be moved because Sage Mountain sold the property where it had been kept. (Pl.'s Compendium, Exh. A, Gerlach Depo. 29:18-31:11, 91:10-92:23.) A trier of fact could find that in deciding where its equipment would go, Gerlach acted in the transaction of Sage Mountain's business.

Moving Defendants answer that Plaintiff's

section 2338 theory presupposes an agent whose negligence is attributable to the principal, and that Molinar was So Cal's agent rather than theirs. That answers a different argument. The agent Plaintiff identifies is Gerlach, not Molinar, and Moving Defendants offer nothing directed to Gerlach's authority to act for the entities he solely owns and manages. This cause of action survives as to Sage Mountain, and Issue Two is not adjudicable in its favor.

Lightsource

Entertainment, LLC. The property to which Gerlach directed the forklift was Lightsource's, the transport served the construction project he was conducting there, and the carrier billed the delivery to “Lite Source” at 2598 N Thames Place. (Pl.'s Compendium, Exh. F.) The decision at the center of Plaintiff's theory was the decision to send the equipment to Lightsource's property. A trier of fact could find that Gerlach was made in the course of Lightsource's business, and the analysis stated above applies with equal force.

This cause of action survives as to Lightsource, and Issue Two is not adjudicable in its favor.

Santa Fe Ranch, LLC. Santa Fe differs from the other two entities in that nothing connects it to the delivery at all. Plaintiff does not dispute that it did not own the forklift, did not arrange the transport, did not own the destination property, did not own the transport vehicle, and did not employ Molinar. Santa Fe hired no one, so neither the peculiar-risk theory nor any theory of agency for Molinar's conduct reaches it. What remains is whether Gerlach's conduct is attributable to it under Civil Code section 2338, which requires that the agent's negligence occur in the transaction of the business of the agency. The transaction here was the movement of Sage Mountain's forklift to Lightsource's property. Neither the equipment, the destination, nor the project belonged to Santa Fe.

Plaintiff answers that Santa Fe insured the forklift, which he offers as circumstantial evidence of involvement with it. Santa Fe's verified response to Form Interrogatory No. 4.1 identifies a general liability policy issued to it with no reservation of rights, and Moving Defendants do not dispute that the policy insured the forklift. (Defs.' Compendium, Exh. 3, Resp. to Form Interrog. No. 4.1.) Insuring a piece of equipment is not conduct undertaken in the transaction of the insurer-entity's business, and that a policy in Santa Fe's name responds to claims arising from the incident says nothing about whose business the delivery was.

Plaintiff also contends that Santa Fe's common ownership presents triable questions of alter ego, agency, and single-business-enterprise liability. Alter ego is unpleaded for the reasons stated above, and it would in any event fail on the second element of the doctrine. Alter ego requires both a unity of interest and ownership, such that the separate personalities of the entity and its equitable owner do not, in reality, exist, and an inequitable result if the acts in question are treated as those of the entity alone. (Sonora Diamond Corp. v. Superior Court (2000) 83 Cal.App.4th 523, 538 through 539.) The second element demands conduct amounting to bad faith that makes it inequitable for the owner to shelter behind the corporate form, and difficulty in enforcing a judgment does not satisfy it. (Id. at p. 539.) Plaintiff identifies no commingling of funds, no undercapitalization, no diversion of assets, no holding out by one entity of liability for another's obligations, and no reason to suppose a judgment against Sage Mountain or Lightsource could not be satisfied. Sole ownership and shared insurance, without more, do not render it inequitable to treat the delivery as the act of the two entities whose equipment and property were involved. A plaintiff must allege and prove facts supporting both elements, and conclusory allegations do not suffice. (Leek v. Cooper (2011) 194 Cal.App.4th 399, 415.) Because the deficiency is one of proof as well as of pleading, an amendment adding alter ego allegations would not alter the result on this record.

This cause of action fails as to Santa Fe.

V. The Motor Vehicle Negligence Cause of Action

The first cause of action is the Judicial Council form Motor Vehicle count. It pleads liability on five bases and no others, and Moving Defendants' initial burden ran to each of them and no further. (Hutton, supra, 213 Cal.App.4th at p. 493.)

A. Operation, Employment, and Agency

Three of the five bases are disposed of by the evidence recited above. No Moving Defendant operated the forklift or the tractor-trailer, none of them employed Molinar, and Molinar was not the agent, actual or ostensible, of any of them. Plaintiff does not contend otherwise; his Opposition rests the entities' liability on Gerlach's conduct rather than on Molinar's. Subdivisions (a), (b), and (e) of MV-2 accordingly fail as to every Moving Defendant.

B. Ownership and Permissive Use

Every owner of a motor vehicle is liable for death or injury resulting from a negligent or wrongful act or omission in the operation of the motor vehicle by any person operating it with the owner's permission, express or implied. (Veh. Code, § 17150.) A vehicle is a device by which a person or property may be propelled, moved, or drawn upon a highway, excepting devices moved exclusively by human power or used exclusively on rails, and a motor vehicle is a self-propelled vehicle. (Veh. Code, §§ 670, 415, subd. (a).) Molinar drove the Gradall forklift under its own power southbound on Laurel Canyon Boulevard and attempted a left turn onto Willow Glen Road. It was a motor vehicle within the meaning of the statute.

The remaining elements rest on Moving Defendants' own evidence. Sage Mountain owned the forklift. (Defs.' Compendium, Exh. 5, Sage Mountain Resps. to Form and Special Interrogs.) Gerlach, its sole owner and manager, hired So Cal to move the equipment and supplied the drop-off address, so Molinar operated the forklift with the owner's permission. (Gerlach Decl., ¶¶ 3, 6; Pl.'s Compendium, Exh. A, Gerlach Depo. 24:5-11.) As to the negligence the statute imputes, Moving Defendants have maintained throughout that Molinar's unsafe left turn was the sole proximate cause of the collision. They cannot press that position and, at the same time, deny the operator's negligence on which owner liability depends.

The theory reaches Sage Mountain and no other Moving Defendant. Santa Fe and Lightsource did not own the forklift, and Plaintiff does not contend that they did. Gerlach verified in his own interrogatory responses that he owns the forklift and that he was the owner who gave Molinar permission or consent to operate it. (Pl.'s Compendium, Exh. E, Gerlach Resps. to Form Interrogs. (General), Set One, No. 20.2(d), (g).) That response does not raise a triable issue that Gerlach held the incidents of ownership in his individual capacity. (Veh. Code, § 460.) He testified that the forklift was purchased through Sage Mountain to carry building materials for his construction work. (Pl.'s Compendium, Exh. A, Gerlach Depo. 29:18-31:11.) Plaintiff's own separate statement states that Sage Mountain's ownership of the forklift is undisputed. It offers the interrogatory response not to show that Gerlach held title but to show that he and his entities treated the equipment interchangeably, in support of the agency, alter ego, and single-business-enterprise theories addressed elsewhere in this ruling. (Pl.'s Resp. to Moving Defs.' Sep. Stmt., No. 15.)

C. Entrustment

MV-2, subdivision (d), pleads that the defendants named entrusted the vehicle. Liability for negligent entrustment rests on the entrustor's own negligence rather than on the driver's, and knowledge of the driver's "unfitness or incompetence to drive is an essential element" of it. (Allen v. Toledo

(1980) 109 Cal.App.3d 415, 419.)

Moving Defendants made a prima facie showing that the element of knowledge cannot be established. Gerlach engaged So Cal, an equipment transport company, on the strength of its represented experience, and So Cal dispatched its own employee in its own truck. (Gerlach Decl., ¶¶ 3, 4, 7, 13.) Molinar told Gerlach at pickup that he was familiar with the area and with the specific road. (Id., ¶ 5.) He confirmed that familiarity at his deposition, testifying that he knew the destination street and Laurel Canyon Boulevard before the incident, that he had made deliveries of this kind, and that he raised no difficulty with this one. (Defs.' Compendium, Exh. 4, Molinar Depo. 206:9-207:21, 208:17-25.) Nothing in that showing would suggest to a person in Gerlach's position that Molinar was unfit or incompetent to move the equipment, and the burden shifted.

Plaintiff does not meet his burden. The Opposition advances no entrustment theory, identifies no evidence bearing on Molinar's competence as an operator, and does not mention the subject. Subdivision (d) accordingly fails as to every Moving Defendant.

D.

Application to Each Moving Defendant

The negligence this cause of action reaches is Molinar's in operating the forklift. For the reasons stated above, it reaches no Moving Defendant through operation, employment, entrustment, or agency, and it is imputed to the owner who permitted the operation. (Veh. Code, § 17150.)

Jack Gerlach. Gerlach did not operate the forklift, did not employ its operator, did not own it, did not negligently entrust it, and was not the agent of a defendant who did. That exhausts the bases MV-2 pleads, and the Opposition supplies no other. Issue One is adjudicated in his favor.

Sage Mountain Ranch LLC. Sage Mountain owned the forklift, and it is the only Moving Defendant the permissive-use theory reaches. Moving Defendants' own evidence establishes both that ownership and the permission with which Molinar operated the equipment, and the Motion leaves the theory untouched.

This cause of action survives as to Sage Mountain, and Issue One is not adjudicable in its favor.

Lightsource Entertainment, LLC. Lightsource neither owned nor possessed the forklift, so the ownership theory that keeps Sage Mountain in this count does not reach it. It did not operate the forklift or employ its operator. It could not have permitted operation as an owner, and it could not have entrusted equipment it neither owned nor possessed. Molinar was not its agent. That negates every basis MV-2 pleads, and the burden shifted. Plaintiff identifies no motor-vehicle theory against Lightsource; he contends that Lightsource answers for Gerlach's arranging conduct, which is the theory the second cause of action pleads. Issue One is adjudicated in its favor.

Santa Fe Ranch, LLC. Santa Fe did not own or possess the forklift, so neither the ownership theory nor the entrustment theory applies. It did not operate either vehicle, did not employ Molinar, and did not hire anyone. No basis MV-2 pleads reaches it. Accordingly, this cause of action fails as to Santa Fe.

CONCLUSION

The Motion for Summary Judgment is granted as to Defendant Santa Fe Ranch, LLC and denied as to Defendants Jack Gerlach, Sage Mountain Ranch LLC, and Lightsource Entertainment, LLC. The alternative Motion for Summary Adjudication is granted as to Issue One in favor of Jack Gerlach and Lightsource Entertainment, LLC, and is otherwise denied.